

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zachary Herman	Team: Squad #11	CCRB Case #: 201900378	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 01/13/2019 12:00 AM, NA, __/__/____	Location of Incident: Unknown location, 76th Precinct Stationhouse	18 Mo. SOL 7/1/1901	Precinct: 76
Date/Time CV Reported Sun, 01/13/2019 9:02 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 01/13/2019 9:02 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Andre Frank	00000	943252	076 PCT
2. An officer			Unknown

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: At an unknown date and time at an unknown location, an officer spoke discourteously to § 87(2)(b)	A . Officer(s) Unidentified
B . LT Andre Frank	Abuse: On January 13, 2019, at the 76th Precinct stationhouse, Lieutenant Andre Frank did not process § 87(2)(b)'s complaint regarding officers.	B . Unsubstantiated

Case Summary

On January 13, 2019, § 87(2)(b) called the CCRB and filed this complaint via the call processing system.

On an unidentified date at an unidentified time at an unidentified location, two police officers allegedly stopped § 87(2)(b) when he was parked in a bus lane. One of the officers then allegedly stated, “You think you can do whatever you goddamn want” (**Allegation A: Discourtesy, § 87(2)(g)**).

At an unknown time on January 13, 2019, § 87(2)(b) went to the 76th Precinct stationhouse to complaint about being issued summonses. When he went to the stationhouse, he spoke with Lieutenant Andre Frank, who was manning the desk. He told Lieutenant Frank he wanted to complain about harassment from two officers who had issued him a summons. Lieutenant Frank allegedly gave § 87(2)(b) a piece of paper with the officers’ names on it, then § 87(2)(b) left the stationhouse without his complaint being processed (**Allegation B: Abuse of Authority, § 87(2)(g)**).

No video evidence was recovered in the course of this investigation.

Findings and Recommendations

Allegation (A) Discourtesy: At an unknown date and time at an unknown location, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that he was approached by two police officers who had previously issued him a summons while he was parked in a bus lane. He testified one of these officers said “You think you can do whatever you goddamn want.” § 87(2)(b) was not issued a summons on this date. § 87(2)(b) was not able to specify when this occurred, or the location where this occurred. § 87(2)(b) variously stated this event took place a few days after October 17, 2018, a few weeks after October 17, 2018, or around the date he was issued a second summons, and was unable to specify a one to two-day range where this interaction could have occurred between himself and police officers (BR01).

§ 87(2)(b) was not able to identify a specific date, range of dates, or a location for his alleged interaction with the police officers. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation (B) Abuse of Authority: On January 13, 2019, at the 76th Precinct Stationhouse, Lieutenant Andre Frank refused to process § 87(2)(b)s complaint against officers.

§ 87(2)(b) testified that on January 13, 2019, at an unknown time, he traveled to the 76th Precinct stationhouse to file a complaint against the police officers who had issued him summonses. He spoke with the desk officer and requested to make a complaint against officers. He provided the desk officer with the summonses he had been issued. The desk officer wrote the

names and shield numbers of the officers who had issued him the summonses on a piece of paper and provided this to § 87(2)(b) as well as the CCRB's phone number. § 87(2)(b) did not recall if the desk officer offered to take his complaint at the stationhouse (BR01, BR02).

Lieutenant Frank testified that he was assigned to the desk on the date and the approximate time of the incident. § 87(2)(b) entered the stationhouse and complained officers who had issued him a summons were harassing him. Lieutenant Frank identified the officers and asked § 87(2)(b) if he wanted to file a complaint, and explained there were multiple ways to file a complaint. Lieutenant Frank provided the CCRB's phone number to § 87(2)(b). Lieutenant Frank offered to fill out complaint paperwork in the stationhouse for § 87(2)(b) who repeatedly stated the officers were harassing him, but did not state he wanted to file a complaint. Lieutenant Frank did not record this interaction in the command log because § 87(2)(b) did not state he wanted to make a complaint against police officers specifically. § 87(2)(b) repeated himself several times regarding the harassment by the officers, then left the stationhouse (BR03).

§ 87(2)(b) testified that he informed the desk officer he wanted to file a complaint against officers, and that he did not fill out a complaint at the stationhouse. Lieutenant Frank testified he offered to take § 87(2)(b)'s complaint at the stationhouse, and provided § 87(2)(b) with multiple options for making a complaint at the stationhouse. Lieutenant Frank additionally testified that § 87(2)(b) did not explicitly request to make a complaint against officers, and complained about general harassment. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the second complaint filed by § 87(2)(b) with the CCRB (BR05).
- Lieutenant Frank has been the subject of seven CCRB cases, with nine allegations total. None of these allegations have been substantiated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was the only complainant/victim in this case and rejected mediation.
- On March 13, 2019, a FOIL request for any notices of claim submitted regarding this case was filed with the Office of the New York City Comptroller. The results of this request will be added to the case file upon their receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(g)
- § 87(2)(g)

Squad No.: 11

Investigator: _____ Investigator Zachary Herman _____
Signature Print Title & Name Date

Squad Leader: _____ _____ _____
Signature Print Title & Name Date

Reviewer: _____ _____ _____
Signature Print Title & Name Date